SUPREME COURT OF THE UNITED STATES

No. 25A914

NICOLE MALLIOTAKIS, ET AL. *v.* MICHAEL WILLIAMS, ET AL.

ON APPLICATION FOR STAY

No. 25A915

PETER KOSINSKI, ET AL. *v.* MICHAEL WILLIAMS, ET AL.

ON APPLICATION FOR STAY

[March 2, 2026]

The applications for stay presented to JUSTICE SOTOMAYOR and by her referred to the Court are granted. The January 21, 2026 order entered by the Supreme Court of the State of New York, New York County, Index No. 164002/2025, is stayed pending the disposition of the appeal in the New York state courts and disposition of a petition for a writ of certiorari in this Court, if such a writ is timely sought. Should certiorari be denied, this stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the issuance of the mandate of this Court.

JUSTICE ALITO, concurring in grant of stay.

These cases concern a state-court order that blatantly discriminates on the basis of race. The New York Supreme Court (that State's trial-level court) ordered the New York Independent Redistricting Commission to draw a new congressional district for the express purpose of ensuring that "minority voters" are able to elect the candidate of their choice. 1 App. to Emergency Application for Stay 15a.

That is unadorned racial discrimination, an inherently "'odious'" activity that violates the Fourteenth Amendment's Equal Protection Clause except in the "most extraordinary case." *Students for Fair Admissions, Inc.* v. *President and Fellows of Harvard College*, 600 U. S. 181, 208 (2023). Extraordinary circumstances exist only when the challenged state conduct is narrowly tailored to achieve a "compelling" interest, and our precedents have identified only two compelling interests that can justify race-based government action: (1) mitigating prison-specific risks and (2) "remediating specific, identified instances of past discrimination that violated the Constitution or a statute." *Id.*, at 206–207. Neither of those interests is present here. Instead, the court based its injunction on an interpretation of state law. But under the Supremacy Clause, a state law cannot authorize the violation of federal rights. It is therefore an understatement to say that applicants are likely to succeed on the merits of their equal protection claim.

Despite this, the New York courts refused to stay the trial court's order. After that highly questionable injunction was issued, the applicants filed appeals in both the Appellate Division (the State's intermediate appellate court) and the Court of Appeals (its highest court) challenging the trial court's order on federal constitutional grounds. At the same time, applicants asked both courts to stay the trial court's order. The Appellate Division refused to issue a stay, and by order issued on February 11, the Court of Appeals sent the appeal filed in that court to the Appellate Division and dismissed applicants' motions for a stay.

With nowhere else to turn, the applicants asked us to issue a stay, and we have jurisdiction to entertain their application. Title 28 U. S. C. §1257(a) gives us jurisdiction to review "[f]inal judgments or decrees" that are rendered by a State's highest court and adjudicate federal constitutional claims, and the Court of Appeals' February 11 order falls within that category. Our decision in *National Socialist*

Party of America v. *Skokie*, 432 U. S. 43, 44 (1977) (*per curiam*), makes that clear. In that case, a trial court issued an injunction that prohibited petitioner's members from engaging in various forms of expression. Without providing any reasoning, both the State's intermediate appellate court and supreme court denied applications for a stay pending appeal, and the latter court also refused to hear the stay applicants' appeal prior to the time when their constitutional rights would be violated. See App. to Application for Stay in *National Socialist Party of America* v. *Skokie*, O. T. 1976, No. 76-1786, pp. 5a–7a (unreasoned orders by the State's intermediate and supreme courts). We held that by "den[ying] both the stay and leave for an expedited appeal," the State Supreme Court was necessarily rendering a final judgment or decree on "the merits of petitioners' claim that the outstanding injunction will deprive them of rights protected by the" Constitution "during the period of appellate review." *Skokie*, 432 U. S., at 43–44. The same is true here: The New York Court of Appeals' decision not to grant a stay or hear a direct appeal was effectively a final determination on the merits of the applicants' claim that the outstanding injunction is depriving them of their constitutional rights pending appeal. Because the situation here is not materially different from that in *Skokie*, we have jurisdiction.

We are likewise authorized to grant a stay because it is "necessary or appropriate in aid of [our] jurisdiction." 28 U. S. C. §1651(a). That requirement is met when a stay is "necessary to prevent a state court from so interfering with a federal court's consideration or disposition of a case as to seriously impair the federal court's flexibility and authority to decide that case." *Atlantic Coast Line R. Co.* v. *Locomotive Engineers*, 398 U. S. 281, 295 (1970).

That is the situation here because there is an unacceptably strong possibility that the applicants' appeal in the state court system will not conclude until it is too late for us to

review the ultimate decision by means of a writ of certiorari, even if it appears that the decision is based on a seriously mistaken understanding of the Constitution. By then, the principle of restraint we recognized in *Purcell* v. *Gonzalez*, 549 U. S. 1 (2006) (*per curiam*), may counsel against the issuance of an injunction. An injunction is an equitable remedy, and such relief may be inequitable if it is issued shortly before an election, when candidates, election officials, and voters have relied on the rules in place at that time. *Ibid*.

At this point, however, the *Purcell* principle does not counsel against a stay. That principle concerns "[l]ate judicial tinkering" that "can lead to disruption and to unanticipated and unfair consequences for candidates, political parties, and voters, among others." *Merrill* v. *Milligan*, 595 U. S. ___, ___ (2022) (KAVANAUGH, J., concurring in grant of application for stay) (slip op., at 4). Here, our stay, far from causing disruption or upsetting legitimate expectations, eliminates much of the uncertainty and confusion that would exist if the Independent Redistricting Commission proceeded to draw a new district that this Court would likely strike down if the cases reached us in time.

For these reasons, the stay issued by the Court rests on sound and well-established legal grounds. JUSTICE SOTOMAYOR's accusation of two-faced practice, *post,* at 1, is baseless, and her 13-page dissent is most notable for what it conspicuously omits: even the most tepid imaginable defense of the constitutionality of the trial court's order. Instead, her disquisition ducks that issue and demands that we wait until the completion of a series of events that would likely run out the clock before we could review the order. That would provide a way of achieving what full review would not permit: the use of an unconstitutional district in the November election and the election of a Member of the House of Representatives whose entitlement to the office would be tainted. That is a prospect this Court should not countenance.